

24PSCV02539 24PSCV02539

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24PSCV02539 Hearing Date: July 27, 2026 Dept: H

Perucho v. City of

Glendora, Case

No. 24PSCV02539

ORDER ON

MOTIONS FOR PROTECTIVE ORDER

1. Defendant City of Glendora's unopposed

Motion for Protective Order Related to Plaintiff's Requests for Admission is GRANTED, to the extent that City need not respond to Plaintiff's Request for Admissions, Set Two, Nos. 36-77.

2. Defendant City of Glendora's unopposed

Motion for Protective Order Related to Plaintiff's Special Interrogatories is GRANTED, to the extent that City need not respond to Plaintiff's Special Interrogatories, Set Three, Nos. 49-92.

Background

Plaintiff

Brandon Perucho ("Plaintiff") alleges that he sustained injuries and damages on February 3, 2024 when the electric scooter he was riding collided with a large portion of concrete barrier debris that was broken off at or near the intersection of Gladstone Street and Nearglen Avenue in Glendora.

On August 7 2024, Plaintiff

filed a complaint, asserting a cause of action against

City of Glendora ("City") and
Does 1-50 for Dangerous Condition of Public Property.

On
November 21, 2024, Plaintiff filed an "Amendment to Complaint," wherein Alfaro
Communications Construction, Inc. ("Alfaro") was named in lieu of Doe 1.

On
December 19, 2024, Plaintiff dismissed Alfaro, with prejudice.

The
Final Status Conference is set for February 16, 2027. Trial is set for March 2,
2027.

1.
Motion for Protective Order Re: Requests for Admission

Legal
Standard

"The court shall
restrict the frequency or extent of use of a discovery method provided in
Section 2019.010 if it determines either of the following:

(1) The
discovery sought is unreasonably cumulative or duplicative, or is obtainable
from some other source that is more convenient, less burdensome, or less
expensive.

(2) The
selected method of discovery is unduly burdensome or expensive, taking into
account the needs of the case, the amount in controversy, and the importance of
the issues at stake in the litigation. . . ." (Code Civ. Proc., § 2019.030, subd.

(a).)

"(a) When requests for admission have been made, the
responding party may promptly move for a protective order. This motion shall be
accompanied by a meet and confer declaration under Section 2016.040.

(b) The court, for good cause shown, may make any order

that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions:

(1) That

the set of admission requests, or particular requests in the set, need not be answered at all.

(2) That,

contrary to the representations made in a declaration submitted under Section 2033.050, the number of admission requests is unwarranted.

(3)

That the time specified in Section 2033.250 to respond to the set of admission requests, or to particular requests in the set, be extended.

(4) That a trade

secret or other confidential research, development, or commercial information not be admitted or be admitted only in a certain way.

(5) That some or

all of the answers to requests for admission be sealed and thereafter opened only on order of the court. . ." (Code Civ. Proc., § 2033.080, subds. (a) and (b).)

Discussion

City

moves the Court for a protective order in connection with Plaintiff's Requests for Admission, Set No. Two. In the alternative, City requests an Informal Discovery Conference ("IDC").

Though

unclear from the notice of motion itself, City seeks an order that it "need not respond to Plaintiff's Request for Admissions, Set Two, Nos. 36-77, because they are duplicative, substantially overlap with prior discovery requests that the City already responded to, are irrelevant, and are unduly burdensome." [FN1]

At the outset, the Court

observes that the docket does not reflect that City ever filed a Request for

IDC or otherwise obtained permission to file the instant motion. The Court notes that City's counsel Isaac Young ("Young") has attached an LACIV-094 Request for IDC as Exhibit W to his declaration in support of City's alternate request for an IDC. City is undoubtedly aware of the Court's request, contained in Paragraph II(D)(1) of the Court's Case Management Conference Standing Order ("Standing Order"), inasmuch as the Standing Order is attached as Exhibit V to Young's declaration. The Court admonishes City's counsel for filing the instant motion without adhering to the Standing Order, but elects to entertain the merits of the motion at this juncture.

Young

represents, and/or the accompanying exhibits reflect, as follows: On August 29, 2024, Plaintiff propounded Form and Special Interrogatories, Requests for Admission and Demand for Production of Documents and Things, Sets No. One, on City. (Young Decl., ¶¶ 5-9, Exhs. A-D). On October 28, 2024, City provided responses to the aforesaid discovery requests. (Id., ¶¶ 10-13, Exhs. E-H). On June 5, 2025, Plaintiff propounded Special interrogatories and Demand for Production of Documents and Things, Sets No. Two, on City. (Id., ¶ 14, Exhs. I and J). On August 26, 2025, City provided responses to the aforesaid discovery requests. (Id., ¶¶ 17 and 18, Exhs. K and L). On February 23, 2026, Plaintiff propounded Form Interrogatories and Requests for Admission, Sets No. Two, as well as Special Interrogatories and Demand for Production of Documents and Things, Sets No. Three, on City. (Id., ¶¶ 19-23, Exhs. M-P [FN2]). On March 26, 2026, City provided responses to the aforesaid discovery requests. (Id., ¶¶ 24-27, Exhs. Q-T). City's counsel attempted to communicate with Plaintiff's counsel, Narek Vandanyan ("Vandanyan"), on three occasions about this potential motion, (1) orally on February 26, 2026, (2) via email on March 17, 2026 and (3) via email on March 23, 2026. (Id., ¶ 29, Exh. U). Vandanyan never responded. (Id., ¶ 30). This instant motion followed, on March 27, 2026.

The motion

is granted. Requests for admission that do not relate to the genuineness of documents are limited to 35, plus any number of additional requests if they are supported by a declaration that complies with Code of Civil Procedure sections 2033.050 and 2033.030, subdivision (b). (Code Civ. Proc., § 2033.020, subd. (a).) Here, City has challenged the sufficiency of Vandanyan's declaration made pursuant to Code of Civil Procedure section 2033.050. Code of Civil Procedure section 2033.040, subdivision (b), provides that "[i]f the responding party seeks a protective order on the ground that the number of requests for admission is

unwarranted, the propounding party shall have the burden of justifying the number of requests for admission.” Plaintiff, by failing to oppose the motion, has not met this burden.

2.

Motion for Protective Order Re: Special Interrogatories

Legal

Standard

See Code of Civil

Procedure §

2019.030, subd. (a), above.

“(a) When interrogatories have been propounded, the responding party, and any other party or affected natural person or organization may promptly move for a protective order. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.

(b) The court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions:

(1) That the set of interrogatories, or particular interrogatories in the set, need not be answered.

(2) That, contrary to the representations made in a declaration submitted under Section 2030.050, the number of specially prepared interrogatories is unwarranted.

(3) That the time specified in Section 2030.260 to respond to the set of interrogatories, or to particular interrogatories in the set, be extended.

(4) That

the response be made only on specified terms and conditions.

(5) That

the method of discovery be an oral deposition instead of interrogatories to a party.

(6) That

a trade secret or other confidential research, development, or commercial information not be disclosed or be disclosed only in a certain way.

(7) That

some or all of the answers to interrogatories be sealed and thereafter opened only on order of the court." (Code Civ. Proc., § 2030.290, subds. (a) and (b).)

Discussion

City

moves the Court for a protective order in connection with Plaintiff's Special Interrogatories, Set No. Three. In the alternative, City requests an IDC.

Though

unclear from the notice of motion itself, City seeks an order that it "need not respond to Plaintiff's Special Interrogatories, Set Three, Nos. 49-92, because they are duplicative, substantially overlap with prior discovery requests that the City already responded to, are irrelevant, and are unduly burdensome." [FN3]

Again, the Court observes that

the docket does not reflect that City ever filed a Request for IDC or otherwise obtained permission to file the instant motion. The Court notes that Young has attached an LACIV-094 Request for IDC as Exhibit W to his declaration in support of City's alternate request for an IDC. City is undoubtedly aware of the Court's request, contained in Paragraph II(D)(1) of the Court's Standing Order, inasmuch as the Standing Order is attached as Exhibit V to Young's declaration. The Court admonishes City's counsel for filing the instant motion without adhering to the Standing Order, but elects to entertain the merits of the motion at this juncture.

See

synopsis of Motion #1.

The motion

is granted. The Discovery Act limits the number of interrogatories that any party may propound to any other party to 35 plus any number of Judicial Council-approved form interrogatories, any number of additional interrogatories supported by a declaration that complies with Code of Civil Procedure sections 2030.040, subdivision (a) and 2030.050 and a supplemental interrogatory.

Here,

City has challenged the sufficiency of Vandanyan's declaration made pursuant to Code of Civil Procedure section 2030.050. Code of Civil Procedure section 2030.040, subdivision (b), provides that "[i]f the responding party seeks a protective order on the ground

that the number of specially prepared interrogatories is unwarranted, the propounding party shall have the burden of justifying the number of these interrogatories." Plaintiff, by failing to oppose the motion, has not met this burden.

[FN1] The quoted language is found in

Paragraph 2 of City's proposed order received March 27, 2026. Additionally, 11:13-16 in City's memorandum of points and authorities indicates that it is opposing having to provide responses to Requests for Admissions, Set No. Two Nos. 36-77.

[FN2] City appears to have

inadvertently failed to attach a copy of Plaintiff's Demand for Production of Documents and Things, Set No. Three as Exhibit P and attached a second copy of Plaintiff's Form Interrogatories, Set No. Two instead.

[FN3] The quoted language is found in

Paragraph 2 of City's proposed order received March 27, 2026. Additionally, 16:3-7 in City's memorandum of points and authorities indicates that it is opposing having to provide responses to Special Interrogatories, Set No. Three, which commences with No. 49.